Revision Date:
03/01/2023

Background:
Customers may choose an adult non-household member as an Authorized Representative (AR) to act on their behalf.

Purpose:
This section provides guidance on AR requirements. This section is being revised to incorporate AR information for Drug/Alcohol Treatment Centers (D/ATC) and Group Living Arrangements (GLA).

Policy:
The AR is designated by the customer to act on their behalf in any of the following situations:
- Complete the application and recertification process
- Obtain and use the Electronic Benefit Transfer (EBT) card
- Complete required reporting (such as mid-period reporting, SAR7, voluntary reporting)
- Complete any required forms

1. Designation of an AR:
Designation of the AR may be made in one of three ways:
- On the application or recertification form itself
- Using a CalFresh AR designation form
- A written statement signed by the customer

Household's (HH's) may select an AR anytime during the certification period. Multiple ARs may be chosen to fulfill distinct roles and responsibilities. For example, the AR designated to apply for the HH may be different from the AR chosen to use the EBT card. The designation of the AR will remain in effect for the duration of the certification period, unless the HH chooses to change the AR. An AR must be an individual and cannot be an organization or agency. Customers seeking assistance from Community-Based Organizations (CBO), agencies, residential facilities or other similar institutions must designate an individual employee of that facility as the AR. The AR must have sufficient knowledge of the customers circumstances to complete the application and/or recertification process. Customers must be informed that the HH will be responsible for any overissuance (OI) that results from incorrect information given by the AR. An AR may represent more than one HH.

The following table provides guidance on AR designations for special HH situations:

HH Situation	AR Designation
Customer has a Social Security Representative Payee	The representative payee can act as AR, but the HH must designate the representative payee as the AR.
AR provides documents such as Power of Attorney, conservatorship, or guardianship	The documents may be used to authorize a third party to act as AR. Once it has been determined that the third party has the authority to act on behalf of the customer, the third party is not required to be designated as an AR.
Customer resides at a Drug/Alcohol Treatment and Rehabilitation Centers	The resident must use an AR who is employed and designated by the D/ATC to apply, obtain, and use

(D/ATC)	benefits. The AR must be an employee of the D/ATC and cannot be an organization or institution.
Customer resides at a Group Living Arrangement (GLA)	The resident has the option to apply on their own behalf, through an AR of their choice or an AR employed and designated by the GLA. If the resident uses an AR designated by the GLA, the AR must be an employee of the GLA and cannot be an organization or institution.

Note: Refer to 63-123 Residents of Drug/Alcohol Treatment and Rehabilitation Centers (D/ATC) and Group Living Arrangements (GLA) for guidance on D/ATC and GLA requirements.

2. Verification of AR:
The identity of both the AR and the customer must be verified and imaged at intake, recertification and whenever a new AR is appointed. D/ATC and GLA must provide a written statement on the center's letterhead designating the AR and provide the identity of the AR.

3. Restrictions on AR Designations:
The following individuals cannot be designated as AR's:

- Employees involved in the eligibility determination process or retailers who are authorized to accept CalFresh benefits. If no one else can act as AR, a request must be sent to the CalFresh Program Manager for approval of the individual to be designated as AR.
- Individuals disqualified for an Intentional Program Violation (IPV) cannot act as an AR during the disqualification periods. If no one else can act as AR, a request must be sent to the CalFresh Program Manager for approval of the individual to be designated as AR.
- Employees of homeless meal service providers, such as soup kitchens or shelters, that are authorized to accept CalFresh benefits.
- An AR that has been disqualified for knowingly providing false information about HH circumstances or improper use of EBT benefits cannot act as an AR during the disqualification period.

4. Emergency AR Designation:
HH's can designate an emergency AR to obtain benefits and purchase food for a specific month. The designation must be made using the CalFresh AR designation form or a written statement signed by the customer and AR.

References:
ACL 19-55, MPP 63-402, MPP 63-503, ACIN I-08-18

Sunset Date:
This policy will be reviewed for continuance by 03/31/2026.

Approval for Release:

3-6-23

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